

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 61783/11
Merab TCHIKASHVILI and Others
against Georgia

The European Court of Human Rights (Fourth Section), sitting on 30 June 2015 as a Committee composed of:

Paul Mahoney, *President,*
Nona Tsotsoria,
Faris Vehabović, *judges,*
and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 24 September 2011,

Having regard to the declaration submitted by the respondent Government on 3 April 2015 requesting the Court to strike the application out of the list of cases and the applicants' reply to that declaration,

Having deliberated, decides as follows:

## FACTS AND PROCEDURE

1. A list of the applicants is set out in the appendix. They are all Georgian nationals and were represented before the Court by Ms N. Katsitadze, T. Abazadze and Ms T. Dekanosidze, lawyers practising in Tbilisi, Georgia.

2. The Georgian Government ("the Government") were represented by their Agent, Mr L. Meskhoradze, of the Ministry of Justice.

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. All three applicants were arrested by the police at around 4 p.m. on 25 March 2011 in the centre of Tbilisi, nearby the Ministry of the Custodial Institutions, during a peaceful demonstration. That demonstration had been planned by a limited number of young opposition activists, including the applicants, who wished to denounce publicly the alleged systemic ill-treatment of prisoners in Georgia.

5. Later in the evening of the same day, at around 8.00 p.m., the arrested applicants were tried by the Tbilisi City Court. After having heard the statements from the applicants, who were assisted by three qualified lawyers of their choice, the police officers who had effectuated the applicants' arrest, as well as a number of independent witnesses who had been summoned by the applicants' lawyers, the court found, by its decision of 26 March 2011, all three applicants guilty, under Article 173 of the Code of Administrative Offences, of the administrative offence of disobedience with police officers' lawful orders. In particular, the impugned actions consisted, according to the court's findings, in the applicants refusing to obey by the patrol police officers' orders to desist from artificially creating impediments to the automobile traffic during the demonstration in question. The first and third applicants were sentenced to twenty days of administrative detention, whilst the second one was sentenced to ten days of detention.

6. The applicants' appeals against their conviction were rejected as inadmissible for a procedural reason by the Tbilisi Court of Appeals on 29 March 2011.

## THE LAW

7. The applicants complained about the interference with their right to hold a peaceful demonstration on 25 March 2011. They relied on Articles 10 and 11 of the Convention.

8. After the communication of the application on 1 December 2014 under the above-mentioned two provisions of the Convention, by a letter of 3 April 2015 the Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issue raised by the application.

9. To that end, the Government acknowledged a violation of the applicants' rights guaranteed by Article 11 of the Convention. They undertook to pay each of the three applicants 1,000 (one thousand) euros to cover any and all pecuniary and non-pecuniary damage as well as costs and expenses, which will be converted into the national currency at the rate applicable on the date of payment, and will be free of any taxes that may be applicable and payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. They further requested the Court to strike out the application.

10. By a letter of 6 May 2015 the applicants indicated that they were not satisfied with the terms of the unilateral declaration on the ground that the Government's acknowledgment of the violation did not specifically refer to the fact of their arrest and the relevant domestic authorities' failure to conduct an effective criminal investigation into the infringement of their right to hold a peaceful demonstration on 25 March 2011.

11. The Court reiterates that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified, under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court in particular to strike a case out of its list if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

12. It also reiterates that in certain circumstances, it may strike out an application under Article 37 § 1 (c) on the basis of a unilateral declaration by a respondent Government even if the applicants wish the examination of the case to be continued. The Court further recalls that it may accept a unilateral declaration even in the absence of prior friendly settlement negotiations (see *Union of Jehovah's Witnesses and Others v. Georgia* (dec.), no. 72874/01, §§ 23-30, 21 April 2015).

13. To this end, the Court has examined the unilateral declaration submitted by the Government in the present case in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (see *Tahsin Acar v. Turkey* (preliminary issues) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI; *WAZA Spółka z o.o. v. Poland* (dec.), no. 11602/02, 26 June 2007; and *Sulwińska v. Poland* (dec.), no. 28953/03, 18 September 2007).

14. At the outset, the Court notes that since the case relates to the applicants' inability to hold a public assembly in a street, the Government's declaration acknowledging a violation of Article 11 of the Convention is sufficient, as the latter provision is the *lex specialis* in the present case, and it is unnecessary to take the complaint under Article 10 into consideration separately (see, for instance, *Ezelin v. France*, 26 April 1991, §§ 35 and 37, Series A no. 202).

15. As regards the applicants' arguments, the Court does not consider them as a valid objection capable of outweighing the Government's unilateral declaration. It considers the Government's acknowledgment of a violation of Article 11 of the Convention to be clear and broad enough to cover all the relevant circumstances of the case. Furthermore, the unilateral declaration does not obviously deprive the applicants of their right to pursue all relevant domestic remedies, would it be criminal, civil, disciplinary or other, after the termination of the proceedings before the Court (see, for

instance, *Taktakishvili v. Georgia* (dec.), no. 46055/06, 16 October 2012; *Parghalava v. Georgia* (dec.), no. 3980/06, 4 March 2014) .

16. The Court has established in a number of cases, including those brought against Georgia, its practice concerning complaints about the administrative arrest and detention as a means of interference with the right to hold a peaceful demonstration, in breach of Article 11 of the Convention (see, for example, *Kakabadze and Others v. Georgia*, no. 1484/07, §§ 84-93, 2 October 2012; *Osmani and Others v. "the former Yugoslav Republic of Macedonia"* (dec.), no. 50841/99, ECHR 2001-X; *Galstyan v. Armenia*, no. 26986/03, §§ 100-102, 15 November 2007; *Ashughyan v. Armenia*, no. 33268/03, §§ 75-77, 17 July 2008; and *Sergey Kuznetsov v. Russia*, no. 10877/04, § 36, 23 October 2008).

17. Having regard to the nature of the admissions contained in the Government's declaration, as well as the amount of compensation proposed – which is adequate in the particular circumstances of the present case – the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1 (c)).

18. Moreover, in light of the above considerations, and in particular given the clear and extensive case-law on the topic, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

19. Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declaration, the application could be restored to the list in accordance with Article 37 § 2 of the Convention (see *Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

For these reasons, the Court, unanimously,

*Takes note* of the terms of the respondent Government's declaration under Article 11 of the Convention and of the modalities for ensuring compliance with the undertakings referred to therein;

*Decides* to strike the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Done in English and notified in writing on 23 July 2015.

Fatoş Aracı
Deputy Registrar

Paul Mahoney
President

## APPENDIX

1. Mr Merab TCHIKASHVILI was born on 3 November 1976.

2. Mr Akaki CHIKOVANI was born on 2 August 1980.

3. Mr Giorgi KHARABADZE was born on 6 November 1986.